

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Dwight Bernard	Team: Squad #3	CCRB Case #: 201507895	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/16/2015 10:20 PM	Location of Incident: 121st Precinct stationhouse	Precinct: 121	18 Mo. SOL 3/16/2017	EO SOL 3/16/2017	
Date/Time CV Reported Wed, 09/16/2015 10:46 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 09/16/2015 10:46 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. SGT Richard Sheahan	04292	937526	121 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A.SGT Richard Sheahan	Discourtesy: Sgt. Richard Sheahan spoke rudely to § 87(2)(b)				

Case Summary

On September 16, 2015, § 87(2)(b) filed a complaint with the CCRB through the Call Processing System. On September 16, 2015, at approximately 10:20 p.m., § 87(2)(b) and § 87(2)(b) went to the 121 Precinct stationhouse to make a complaint about the neighboring house, where people are smoking weed and being disruptive. § 87(2)(b) first spoke to an individual seated at the front of the stationhouse, PAA Yvette Rosa-Alonso. Once § 87(2)(b) told § 87(2)(b) the complaint she went to the Desk Officer, Sgt. Richard Sheahan of the 121 Precinct, and explained § 87(2)(b)'s complaint. Sgt. Sheahan responded, "What the fuck am I supposed to do shoot these guys" (**Allegation A**). Once § 87(2)(b) spoke to Sgt. Sheahan he and § 87(2)(b) left the stationhouse. There is no available video of the incident.

Mediation, Civil and Criminal History

- Mediation was explained and to § 87(2)(b) and § 87(2)(b). Although § 87(2)(b) accepted mediation, § 87(2)(b) rejected it. § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of October 12, 2015, no Notice of Claim has been filed by either § 87(2)(b) or § 87(2)(b) in regards to this incident.

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s (Board Review 01) and § 87(2)(b)'s (Board Review 02) first complaint with the CCRB.
- Sgt. Richard Sheahan has been a member of the NYPD for 10 years and has three previous CCRB complaints. There are no substantiated allegations against Sgt. Sheahan. § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Allegation A- Discourtesy: Sgt. Richard Sheahan spoke rudely to § 87(2)(b)

During § 87(2)(b)'s interview on September 23, 2015 (Board Review 05), he alleged that when he requested to speak to the Sergeant about his complaint, PAA Rosa-Alonso explained the complaint to Sgt. Sheahan and he said "What the fuck am I supposed to do shoot these guys?" When § 87(2)(b) filed his complaint on September 16, 2015, he stated that Sgt. Sheahan cursed at him and § 87(2)(b) and was disrespectful. During § 87(2)(b)'s phone statement on September 18, 2015 (Board Review 06) he stated that he was unsure if Sgt. Sheahan used profanity but believes it was used in the beginning of the interaction. § 87(2)(b)

provided a statement on September 23, 2015. She was unsure if Sgt. Sheahan used profanity, but stated that if it had been it was probably when Sgt. Sheahan stated, “What do they want me to do?” PAA Rosa-Alonso did not recall the incident (Board Review 03). Sgt. Sheahan denied making the statement or using profanity (Board Review 04).^{§ 87(2)(g)}

[REDACTED]

Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date